

25NNCV07165 25NNCV07165

County: los-angeles

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Case Number: 25NNCV07165 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Relief from Waiver of Objections

Hearing Date: 9/4/26

CASE NO.: 25NNCV07165

CASE NAME: Huanming Cen v. Jun Sheng Liang

Moving Party: Defendant Jun Sheng Liang

Responding Party: Unopposed

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action. On October 8, 2025, plaintiff Huanming Cen (Plaintiff) filed a Complaint against defendant Jun Sheng Liang (Defendant) arising out of a motor vehicle accident that occurred on November 22, 2024.

On November 19, 2025, Plaintiff served Defendant with discovery requests including form interrogatories, special interrogatories, requests for admission, and requests for production of documents (collectively, Discovery Requests). After two extensions, responses to Discovery Requests were due on January 23, 2026. Defendant did not respond on or by the deadline.

On February 26, 2026, Defendant filed the instant motion seeking relief from waiver of objection to Discovery Requests. As of September 1, 2026, no opposition has been filed.

LEGAL

STANDARD

"If a party to whom a demand for inspection, copying, testing, or sampling fails to serve a timely response" the party waives any objection to the requests, including one based on privilege. (Code Civ. Proc. § 2031.300.) However, a party may be relieved of that waiver if "(1) [t]he party has subsequently served a response that is in substantial compliance with [the Discovery Act]" and "(2) [t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., §§ 2033.290(a)(1)-(2), 2031.300(a)(1)-(2), 2033.280(a)(1)-(2).) Substantial compliance means actual compliance with respect to the substance essential to every reasonable objective of the statute. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779.) However, substantial compliance should not be understood as requiring actual compliance with every specific statutory requirement. (Ibid.)

DISCUSSION

Defendant seeks

relief from waiver of objection to Discovery Requests due to subsequent substantial compliance. (Mot., p. 5.) Defendant argues that they served verified code-compliance responses one month after the agreed deadline to respond, in good faith. (Ibid.) Further, Defendant argues relief should be granted because failure to provide timely response was the result of mistake, inadvertence, or excusable neglect. (Mot., p. 6.) Defense counsel argues that through their paralegal, they obtained two extensions from Plaintiff and due to a language barrier, a third extension was sought. (Mot., p. 7.) However, due to an administrative breakdown and improper calendaring, Defense counsel argues that they were unaware that a third extension was not granted. (Ibid.) Defense counsel further maintains that they were under the impression that responses had been prepared and served. (Ibid.) Defense counsel argues that they only recently discovered the error because they were involved in trial but upon discovery, promptly met and conferred with Plaintiff and subsequently served responses. (Ibid.) Defense maintains that withholding response was not intentional, deliberate, or purposeful, and Plaintiff will suffer no prejudice as a result of the short delay. (Ibid.)

Here,

Defense counsel declares that on February 26, 2026, they served responses to Plaintiff's Discovery Requests. (Hovsepian Decl., ¶ 16; Exh. 5-8.) Defense counsel served verified responses and produced all responsive documents one month after discovering the missed deadline. (Ibid.) Defendant served substantive responses and included only privilege-based objections. (Hovsepian Decl., ¶ 13.)

Further,

Defense counsel declares that they were heavily engaged in trial preparation in *Sahagun v. Samz*, (Los Angeles Superior Court Case No. 24STLC05270) which was originally set for January 20, 2026, and continued to February 3, 2026, before it was resolved in a last-minute settlement. (Hovsepian Decl., ¶ 9.) These circumstances constitute excusable neglect under established California law, which recognizes that calendaring errors and administrative oversights may warrant relief. (*Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 911.) (concluding that an attorney's reliance on mistakenly calendared dates can constitute excusable

neglect). Moreover, upon learning of the missed deadline, Defense counsel acted diligently and served complete responses. This quick remediation and Plaintiff's failure to show prejudice further supports the finding of excusable neglect

Thus, Defendant has subsequently served substantially compliant responses and shown that their failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Accordingly,
Defendant's motion for relief from waiver of objection is GRANTED.

CONCLUSION AND ORDER

Defendant Jun
Sheng Liang's motion for relief from waiver of objection is GRANTED.

MOVING PARTY
shall
provide notice and provide a proposed order consistent with this ruling within
15 days from this date.